

(41).
July 1837.
Master's Cer-
tificate of pro-
ceedings.

That, upon any application made by any person to the Court, the Master, if required by the person making the application, shall, in as short a manner as he conveniently can, certify to the Court the several proceedings which shall have been had in his office in the same cause or matter and the dates thereof.

(20).
July 1837.
Costs of separ-
ate proceedings
for defendants
by the same
Solicitor.

That, where the same Solicitor is employed for two or more defendants, and separate answers shall have been filed, or other proceedings had by or for two or more defendants separately, the Master shall consider the taxation of such Solicitor's bill of costs, either between party and party or between Solicitor and client, whether such separate answers or other proceedings were necessary or proper; and, if he be of opinion that any part of the costs occasioned thereby has been unnecessarily or improperly incurred, the same shall be disallowed.

(30).
July 1837.
Service upon
the Solicitor of
a person who is
not a party.

That, whenever a person, who is not a party, appears in any proceeding either before the Court or before the Master, service upon the Solicitor in the City of Toronto, by whom such party appears, whether such solicitor act as principal or agent, shall be deemed good service except in matter of contempt requiring personal service.

(39).
July 1837.
Costs occasion-
ed by the non-
attendance of
parties.

That, where a proceeding fails by reason of the non-attendance of any party or parties, and the Master does not think it expedient to proceed *ex parte*, then the Master shall be at liberty to certify what amount of costs, if any, he thinks it reasonable to be paid to the party or parties attending by the absent party or parties, or by his or their Solicitor or Solicitors personally, as the Master in his discretion shall think fit; and, upon motion or petition without notice, the Court will make order for payment of such costs accordingly.

(49).
July 1837.
Affidavits used
before the
Master.

That all affidavits, which have been previously made and read in Court upon any proceeding in a cause or matter, may be used before the Master.

(50).
July 1837.
Further affida-
vits in reply to
former affida-
vits.

That, where upon an enquiry before the Master affidavits are received, then no affidavit in reply shall be read except as to new matter which may be stated in the affidavits in answer, nor shall any further affidavits be read unless specially required by the Master.

(59).
July 1837.
Sales in the
country.

That, in cases where estates or other property are directed to be sold before the Master, the Master shall be at liberty, if he shall think it for the benefit of the parties interested, to order the same to be sold in the country at such place and by such person as he shall think fit.

(37).
July 1837.
Master may
proceed *ex*
parte.

That, when some, or one, but not all the parties do attend the Master at an appointed time, whether the same be fixed by the Master personally, or upon a warrant, then

the Master shall think it expedient to do.

That, where a proceeding is made to the Master's office, and the Master's office is closed, the Master shall be at liberty to lay or neglect the proceedings occasioned by the Master's office, or by the Solicitor before the Master, or by the warrant to the Master.

That, where an Order does not require the Master's office, then the Master shall be at liberty to lay or neglect the proceedings occasioned by the Master's office, or by the Solicitor before the Master, or by the warrant to the Master.

That, where an Order does not require the Master's office, then the Master shall be at liberty to lay or neglect the proceedings occasioned by the Master's office, or by the Solicitor before the Master, or by the warrant to the Master.

That a creditor who shall come under a Decree of the Court, and who shall be interested upon the date of decree, shall be at liberty to satisfy the interest of the creditor.

That the Master shall be at liberty to make such order as he shall think fit.